

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 37-001

**Amendments to Title 5 of the Chickasaw Nation Code
(Crimes Against Public Health, Safety and Welfare Provisions)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules for the courts of the Chickasaw Nation, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend the criminal provisions of the Chickasaw Code in order to ensure public safety.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes, approves, and adopts the following amendments to Title 5, Chapter 5, Section 5-1506.7 and Title 5, Chapter 5, Section 5-1506.8 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; omissions without deletions signified by "***"; deletions stricken through):

"SECTION 5-1506.7

WEAPONS OFFENSE.

A. It shall be unlawful to:

1. have a Dangerous Weapon in one's actual possession while being addicted to any narcotic drug; or after having been declared mentally incompetent; or being intoxicated or otherwise under the influence of alcoholic beverages or other intoxicating substance, drug, or medicine; or while possessing the intent to unlawfully assault another; or while under the age of sixteen (16) years **eighteen (18) years** of age, and without the consent of his parent or guardian; or
2. carry a loaded ~~Firearm~~ **Shotgun or Rifle** in a vehicle on a public road without lawful authority to do so; or to discharge any kind of Firearm from a motor vehicle without lawful authority to do so; or to discharge a Firearm from, upon or across any public highway without lawful authority to do so.
3. **carry a Firearm concealed or unconcealed on the person. This does not prohibit the lawful use of Firearms for hunting, fishing, educational or recreational**

purposes, security or law enforcement activities, or as otherwise authorized by Chickasaw law.

B. Definitions:

1. "Dangerous Weapon" means any item, **including a Firearm**, that in the manner of its use or intended use is capable of causing death or serious bodily injury. In determining whether an item, object or thing not commonly known as a Dangerous Weapon is a Dangerous Weapon, the character of the instrument, object or thing the character of the wound produced, if any, and the manner in which the instrument, item or thing was used shall be determinative.

2. ~~"Firearms" mean pistols, revolvers, rifles, shotguns, and any device that is capable of being used as a weapon because it expels a projectile by some means of force.~~

3. ~~A Firearm or other weapon shall be deemed "loaded" when there is an unexpended cartridge, shell or projectile in the firing position, except in the case of pistols and revolvers in which case they shall be deemed "loaded" when an unexpended cartridge, shell or projectile is in such position as could be fired by one or more pulls of the trigger.~~

C. Weapons Offense shall be punishable by a fine not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, ~~or both.~~ **immediate removal or banishment from Chickasaw Nation property, or any combination of these listed punishments.**

SECTION 5-1506.8

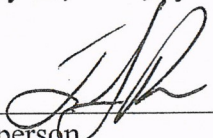
AGGRAVATED WEAPONS OFFENSE.

A. It shall be unlawful to carry a Dangerous Weapon concealed **or unconcealed** on the person or to threaten to use or exhibit a Dangerous Weapon in a dangerous and threatening manner, or use a Dangerous Weapon in a fight or quarrel; or to possess a **short-barreled shotgun** ~~or rifle having a barrel or barrels of less than sixteen (16) inches in a length or an altered or modified shotgun or rifle less than twenty four (24) inches overall length~~ **having one or more barrels less than eighteen (18) inches in length or any weapon made from a shotgun (whether by alteration, modification or otherwise) if such a weapon as modified has an overall length of less than twenty-six (26) inches in length; or a short-barreled rifle having one or more barrels less than sixteen (16) inches in length or any weapon made from a rifle (whether by alteration, modification, or otherwise) if such a weapon as modified has an overall length of less than twenty-six (26) inches in length.** This does not prohibit the lawful use of Firearms for hunting, fishing, educational or recreational purposes, security or law enforcement activities, or as otherwise authorized by Chickasaw law.

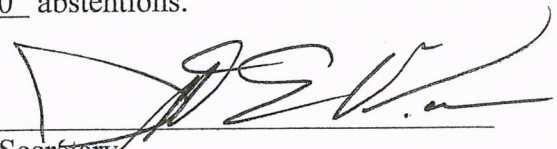
B. Aggravated Weapons Offense shall be punishable by a fine not to exceed five

thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, ~~or both~~.
**immediate removal or banishment from Chickasaw Nation property, or any combination
of these listed punishments."**

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on
January 17, 2020, by a vote of 9 ayes, 1 nays, 0 abstentions.

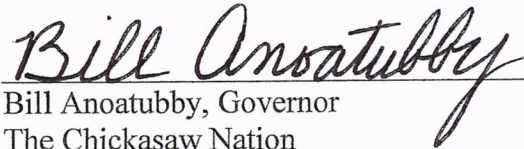


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date: JAN 17 2020

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 37-001
Amendments to Title 5 of the Chickasaw Nation Code
(Crimes Against Public Health, Safety and Welfare Provisions)

Explanation:

This Permanent Resolution amends Title 5 of the Chickasaw Code, which will outlaw Firearms on Chickasaw Nation owned property except for the "lawful use of Firearms for hunting, fishing, educational or recreational purposes, security or law enforcement activities, or as otherwise authorized by Chickasaw law."

Proposed by:

Executive

Presented by:

Legislative Committee

Chickasaw Tribal Legislature